

HOUSE BILL 964

By Hawk

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 29 and Title 49, Chapter 6, Part 8, relative
to school safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-818(a)(2), is amended by
deleting the subdivision and substituting:

(2)

(A) If a public school building, including a public charter school building,
is constructed or remodeled after July 1, 2023, but prior to July 1, 2025, then the
building must have installed a clear entry-resistant film on the glass panel of each
exterior entry or basement level window and door to prevent individuals from
entering the school building without authorization by breaking the glass in an
exterior entry or basement level window or door; and

(B) If a public school building, including a public charter school building,
is constructed or remodeled on or after to July 1, 2025, then the building must
have installed a clear window film or security glazing that meets a nationally
recognized test standard for forced entry resistance, such as the ASTM F3561
test standard, for glazing systems of each exterior entry or door plus adjoining
glazing and the secure interior vestibules serving as primary entrances to prevent
individuals from entering the building without authorization;

SECTION 2. Tennessee Code Annotated, Section 49-6-818, is amended by adding the
following as a new subsection (b) and redesignating the existing subsection (b) and the
remaining subsections accordingly:

(b) The state-level safety team established under § 49-6-802 shall develop guidelines for compliance with this section and update the guidelines as needed. The state-level safety team shall transmit all of the guidelines that it develops pursuant to this section to the state fire marshal to be incorporated into rules pursuant to § 68-120-101.

SECTION 3. The state fire marshal is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 4. For the purposes of establishing guidelines and promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.